

26STCV09035 26STCV09035

County: los-angeles

Division: Civil Law and Motion

Department: 731

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Case Number: 26STCV09035 Hearing Date: September 10, 2026 Dept: 731

[TENTATIVE] ORDER RE: MOTION

FOR ORDER PERMITTING SERVICE OF COMPLAINT BY DELIVERY TO CALIFORNIA SECRETARY
OF STATE

Moving Party: Plaintiff, Laboratory Corporation of America

Opposing Party: None

Notice: OK

Background Facts

Now before the Court is Plaintiff Laboratory Corporation of America's motion for approval to serve Defendant Biological Laboratory Inc. pursuant to Code of Civil Procedure section 416.20, permitting service of summons on the California Secretary of State.

Motion for Approval
of Service of Summons on California Secretary of State

a. Legal
Standard

If [1] a corporation's agent designated for service of process has resigned but has not been replaced, cannot with reasonable diligence be found at the address designated for personally delivering the process, or has not been designated, and [2] it is shown by affidavit that the domestic corporation cannot be served in accordance

with Code of Civil Procedure sections 415.10, 415.20, 416.10, or 416.20, then “the court may make an order that the service be made upon the corporation by delivering by hand to the Secretary of State, or to any person employed in the Secretary of State’s office in the capacity of assistant or deputy, one copy of the process for each defendant to be served, together with a copy of the order authorizing such service.” (Corp. Code, § 1702, subd. (a).)

“Service in this manner is deemed complete on the 10th day of delivery of the process to the Secretary of State.” (Corp. Code, § 1702, subd. (a).)

Discussion

Here, Plaintiff’s unsworn moving papers, in detail and with supporting exhibits, explain how Plaintiff has attempted to serve Defendant Biological Laboratory Inc.’s registered agent for service of process at the address listed (and independently confirmed by this Court) on the California Secretary of State website, and how that address is now vacant, a proposition confirmed by an unlawful detainer action before this Superior Court (No. 25PSCV03502), foreclosing Plaintiff’s ability to effect service of summons at this time. (Motion, ¶¶ 1-7 at pp. 2-5; cf. Motion, Dye Decl., ¶¶ 1-3; see also 25PSCV03502, May 5, 2026, Motion, Guinotte Decl. ¶ 4, Ex. 1 [abandonment of premises at 620 W. Covina by February 2026].)

These circumstances and supporting evidence present sufficient grounds for relief.

However, the papers filed are procedurally defective insofar as a memorandum of points and authorities supporting a motion must include a concise statement of the law, arguments, and evidence relied on and a discussion of the statutes, cases, and textbooks cited in support of the movant’s position. (Cal. Rules of Court, rule 3.1113(b); see, e.g., *Nationwide Ins. v. Tipton* (2023) 91 Cal.App.5th 1355, 1365 [trial court had discretion to ignore arguments that defendants did not properly present in their memorandum of points and authorities in opposition to plaintiff’s petition].)

Here, a juxtaposition of the points and authorities and the only declaration on file, i.e., the June 16, 2026, Carolyn A. Dye, Esq., declaration, shows that many of the representations in

the points and authorities and even authentication of the exhibits attached to the points and authorities do not appear in the Dye declaration.

Relief here thus necessitates further representations at oral argument from Plaintiff to confirm the positions taken in the unsworn moving papers and to authenticate the exhibits referenced therein.

c. Conclusion

Plaintiff Laboratory Corporation of America's motion for approval to serve Defendant Biological Laboratory Inc. pursuant to Code of Civil Procedure section 416.20 is GRANTED subject to Plaintiff's attestation to the moving papers' factual representations and authentication of exhibits at oral argument, which may be effected via counsel.

Plaintiff Laboratory Corporation of America is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at smcdept731@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.